



Article: 51

Warrant Article Title:

ZONING BYLAW AMENDMENT / AMENDMENT TO ZONING
BYLAW TABLE OF DIMENSIONAL AND DENSITY
REGULATIONS

Warrant Article Text:

To see if the Town will vote to amend Section 5.4.2 (A)
Dimensional and Density Regulations the Arlington Zoning Bylaw
to add the following under R6: "Assisted living residents on more
than 20,000 square feet- 50 feet height; 3 stories; 1.2 FAR"; or
take any action related thereto.

Requested By:

Mary Winstanley and ten registered voters

Report Excerpt:

The Board recommends Favorable Action (5-0).

As with Article 50, the Board is in support of this zoning
amendment, which modifies the Table of Dimensional and
Density Regulations in Section 5.4.2.A. of the Zoning Bylaw in
response to a proposed assisted living project at 0 Lot Concord
Turnpike, currently owned by the Archdiocese of Boston in care of
Saint Camillus Parish.

The amendment establishes specific dimensional and density
requirements for assisted living facilities on lots greater than
20,000 square feet. While such facilities are already allowed by
Special Permit in the R6 district, the Zoning Bylaw does not
currently provide requirements for assisted living projects of the
proposed scale.

Any proposed assisted living facility on lots greater than 20,000 square feet would be subject to minimum dimensional requirements including setbacks of 20' in the front yard, 10' in the side yard, and 20' in the rear yard. These setbacks are consistent with those already required for "other permitted structures" in the R6 district. In addition, a minimum of 60 feet of street frontage would be required.

Any proposed assisted living facility would also be subject to a landscaped open space requirement of 10%. In addition, Article 51 limits assisted living facilities on lots of more than 20,000 square feet to a maximum height of 50 feet and three stories, with a maximum density of 1.2 floor area ratio (FAR). FAR is defined in the Zoning Bylaw as the ratio of a building's gross floor area to the total area of the lot.

The Board again emphasized that amending the Bylaw to accommodate an assisted living project such as the concept proposed is only the first step in a series of required actions to approve and permit a project on the site.

Vote Language:

That the Zoning Map be and hereby is amended as follows:

Amend SECTION 5.4.2.A, Dimensional and Density Requirements, as follows:

5.4.2. Dimensional and Density Requirements

A. Tables of Dimensional and Density Regulations

R District Lot Regulations (see 5.4.2(B) for exceptions).

	Minimum Requirement		
District/Use	Minimum Lot Area (sq. ft.)	Minimum Lot Area per Unit (sq. ft.)	Minimum Lot Frontage (ft.)
...			

R6

<u>Assisted living residence on more than 20,000 square feet</u>	<u>20,000</u>	<u>----</u>	<u>60</u>
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R District Yard and Open Space Requirements (see 5.4.2.B and 5.9.2.B.(1).e for exceptions).

	Minimum Requirement		
District/Use	Front Yard (ft.)	Side Yard (ft.)	Rear Yard (ft.)

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R6

<u>Assisted living residence on more than 20,000 square feet</u>	<u>20</u>	<u>10</u>	<u>20</u>
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R District Open Space and Lot Coverage Regulations (see 5.4.2(B) and 5.3.13(B) for exceptions).

	Minimum/Maximum Requirement		
District/Use	Landscaped Open Space (Min.)	Usable Open Space (Min.)	Maximum Lot Coverage

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R6

<u>Assisted living residence on more than 20,000 square feet</u>	<u>10%</u>	<u>----</u>	<u>----</u>
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R District Building Height and Floor Area Ratio Regulations (see 5.4.2(B) for exceptions).

District/Use	Maximum Allowed		
	Maximum Height (ft.)	Maximum Height (stories)	Maximum Floor Area Ratio (FAR)
...			
R6			
<u>Assisted living residence on more than 20,000 square feet</u>	<u>50</u>	<u>3</u>	<u>1.2</u>

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